

or the manner in which it occurred.’ (6 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 976, p. 367). It must appear that the intervening act has produced ‘harm of a kind and degree so far beyond the risk the original tortfeasor should have foreseen that the law deems it unfair to hold him responsible.’ (*Soule v. General Motors Corp.*, *supra*, 8 Cal.4th at p. 573, fn. 9 [34 Cal.Rptr.2d 607, 882 P.2d 298]).” (*Torres v. Xomox Corp.* (1996) 49 Cal.App.4th 1, 18–19, 56 Cal.Rptr.2d 455.)(*Perez v. VAS S.p.A.* (2010) 188 Cal.App.4th 658, 680–681).

“In many cases, the issue whether an intervening force is superseding or not is a question of fact for the jury to decide. But, like proximate cause generally, it is a matter of law where only one reasonable conclusion may be reached.” (*Brewer*, *supra*, 40 Cal.App.4th at 1031).

Again, the difficulty presented here for the court is that the facts with regard to what transpired are in dispute. Under these circumstances, the court cannot determine as a matter of law whether defendant Amezcua’s conduct is a superseding cause.

IV. CONCLUSION

Based on the foregoing, Defendants Costco and Reyna’s motion for summary judgment is DENIED. Court will prepare the formal Order.

Calendar Lines # 3-4

Case Name Robert M. Branch et al vs Spacelink Corporation SV et al

Case No. 23CV426924

Motion to Compel (Line #3) and Motion to Compel (Line #4) & Sanctions

I. BACKGROUND

On May 14, 2025, Defendant Spacelink Corporation (Spacelink), filed identical motions to compel special interrogatories (“SPROG”); form interrogatories (“FROG”); and request for production (“RPD”), set one, against five plaintiffs: Anthony Colucci, Robert Branch, Larry Rubin, Sara Fanous, and Rabindra Singh (collectively “Plaintiffs”). The motions to compel regarding plaintiffs Robert Branch, Larry Rubin, and Sara Fanous was unopposed and granted on February 10, 2026, with reservations on the sanctions request. The motions to compel regarding plaintiffs Anthony Colluci (Line # 3) and Rabindra Singh (Line # 4) were continued to today’s hearing date at the request of the party.

Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Plaintiffs have not filed opposition papers to any of the five motions to compel in this matter.

On May 8, 2026, the parties submitted a joint statement regarding the status of the motions.

The Court has carefully reviewed the following documents: joint statement regarding Spacelink’s motion to compel (totaling 19 pages); Declaration of Robert Bodzin in support of Defendant’s motion to compel response from Rabindra Singh and attached Exhibits A-G (totaling 108 pages); Declaration of Robert Bodzin in support of Defendant’s motion to compel response from Anothony Colucci and attached Exhibits A-G (totaling 109 pages); Declaration of Robert Bodzin in support of Defendant’s motion to compel response from Rabindra Singh and attached Exhibits A-I (totaling 157 page); notice of motion packet for Rabindra Sing (totaling 156 pages);

Defendant's memorandum of points and authorities to compel discovery response from Rabindra Singh (totaling 12 pages); Notice of motion to compel discovery of Anthony Colucci (totaling 5 pages); Memorandum of points and authorities in support of the motion to compel discovery of Anthony Colucci (totaling 12 pages); Declaration of Robert Bodzin in support of Defendant's motion to compel response from Anthony Colucci and attached Exhibits A-G (totaling 152 pages); January 6, 2026 joint statement (totaling 7 pages); Reply in support of Defendant's Motion (totaling 8 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2017.010:

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”

For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288). Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (*Juarez v. Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 389).

A. Procedural Requirements

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

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(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. Motion to Compel Responses to Further Form and Special Interrogatories

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within thirty (30) days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b).) There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

C. Motion to Compel Further Responses to Request for Production of Documents

Code of Civil Procedure section 2031.310(b)(1) sets forth that a motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1)). In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct.* (2002) 95 Cal. App.4th 92, 98).

III. ANALYSIS

On February 6, 2025, Defendant served Plaintiffs Anthony Collucci and Rabindra Singh with SPROG, FROG, and RPD, Set One (Declaration of Bodzin, at p. 3). Defendants granted the plaintiffs an extension to respond, and Plaintiffs responded on March 28, 2025. Defendants assert that the responses were boilerplate objects and deficient and met-and-conferred with Plaintiffs’ counsel on April 10, 2025 and alerted plaintiffs’ counsel that the defense may file a motion to compel and seek sanctions. (*Id.*; Exhibit I). On May 14, 2025, Defendant filed a motion to compel response to SPROG, FROG, and RPD, Set One on Plaintiffs Anthony Colucci and Rabindra Singh. The motion to compel was originally set for February 17, 2026. The parties requested to continue the matter to the present day. Parties met-and-conferred and presented a joint statement on the status of discovery.

Here, the defendants allege that on February 11, 2026, the parties met-and-conferred over video conference and agreed that the plaintiffs would provide *further* verified responses to discovery by April 3, 2026. (Joint Statement, at p 4). The parties submitted a joint statement to this effect and on February 17, at the request of the parties, the Court continued these two motions to the present day.

Defendants assert that Plaintiffs did not provide further amended response by April 3 and violated their agreement. Five days later on April 8, defense counsel notified Plaintiffs' counsel that responses were not timely provided and that the defendants were prejudiced by plaintiffs failure to comply with discovery obligations.

Defendants assert that Plaintiffs did not respond and have yet to serve further verified and code-compliant amended responses. (*Id.*). Defendants allege that Plaintiffs failed to produce any responsive documents to RPD Nos. 2031 and emphasize that the RPD were propounded more than a year ago. (*Id.*, at p. 5). Defendants state that plaintiffs failed to serve a privilege log. (*Id.*). In addition to no responses, defendants assert that plaintiffs' amended discovery responses are deficient FROGs Nos. 12.1 and 17.1; SPROG Nos. 2.4, 8, 18, 28, 30, 31, 32, and 34; and RPD Nos. 5-7, 9-14, 17, 25, and 33. Essentially defense argues that the responses failed to identify all facts, witnesses, and documents to supports a code-compliant response. Defendant asserts in a footnotes that it has not waived its right to bring a motion to compel further responses.

Plaintiffs have not opposed any of the motions to compel for the five plaintiffs, including that of Rabindra Singh and Anthony Colucci presently in front of the Court. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

In the joint statement, Plaintiffs assert that parties have met-and-conferred and plaintiffs believe that the motions may be rendered moot. However, plaintiffs opposes the defense's characterization of the amended discovery responses. (Joint Statement, at p. 8). Plaintiff admits that it provided untimely responses, but emphasizes that the responses were 20 minutes late on February 3. Plaintiff admits that the initial amended responses were unverified, but emphasizes that verifications were served 15 hours later. (*Id.*). As to privilege logs, plaintiffs assert that no privileged documents are required to be logged and stay that counsel have agreed to long one document. As to RPD, plaintiffs assert that there are only a small number of documents, estimated at 30-40 to produce. "Plaintiffs still intend to produce those documents, hopefully next week and in any event, no later than the hearing on this matter." (*Id.*, at p. 8-9). Plaintiffs apologized for the delay, but emphasizes that the production of document is outside the scope of defendant's pending motions which seeks to compel further discovery responses rather than documents. (*Id.*, at p. 9). Plaintiff also denies that it produced evasive answers to FROGs and SPROGs and asserts that it either did not have the information or knew that defense already possessed the information. (*Id.*).

Here, the Court finds that the motion to compel responses to FROG and SPROGs is MOOT. Defendant filed verified responses prior to the hearing in substantial compliance. Should the defendant seek further responses then a separate motion needs to be filed accompanied by a separate statement.

As for the RPD No. 2-31, no responsive documents have been produced per defense. The Court notes Defendant motion to compel include request for production of documents set one as set forth in Exhibit E (Declaration of Bodzin in support of motion to compel discovery for Anothony Colucci) and Exhibit E (Declaration of Bodzin in support of motion to compel discovery for Rabindra Singh). The Court will GRANT the motion to compel responses to RPD No. 20-31.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

Pursuant to California Code of Civil Procedure section 2030.030, a propounding party may bring a motion for monetary, issue, evidentiary, or terminating sanctions against any party that is engaging in misconduct in the discovery process. “Only two facts are absolutely prerequisite to imposition of a discovery sanction: (1) there must be a failure to comply, and (2) the failure must be wilful [sic].” (*Valencia v. Mendoza* (2024) 103 Cal. App. 5th 427, 447, review denied (Oct. 16, 2024) (citing *Vallbona v. Springer* (1996) 43 Cal. App. 4th 1525, 1545 and *Karlsson v. Ford Motor Co.* (2006) 140 Cal. App. 4th 1202, 1214–15).

Once a discovery motion has been filed, sanctions may still be awarded “even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a)).

Here, Defendants seeks monetary sanctions in the amount of \$2,850.00²⁰ against **each** of the following Plaintiffs: Singh, Branch, Rubin and Fanous and \$3,450.00 against Plaintiff Colucci. In total, Defendants seek \$14,850.00 in sanctions against all five plaintiffs. (Joint Statement 6-7; Declaration of Bodzin in support of motion to compel discovery for Rabindra Singh, at p. 4; Declaration of Bodzin in support of motion to compel discovery for Anthony Colucci, at p. 4).

Defendant seeks sanctions against Plaintiffs for the motion to compel discovery response for Rabindra Singh in the amount of \$2,850.00. Defendant attests to expending a total estimated 9.5 hours at the hourly rate of \$300.00 as follows: 3.8 hours to draft the moving papers for a total of \$1,140.00; 2 hours at the same hourly rate for review and prepare for the work for a total of \$600.00; 3 hours to review and prepare for opposition papers; and the work; \$900.00 for a reply brief²¹; and 0.07 hours to prepare for the hearing for a total of \$210.00. (*Id.*).

Defendant states that \$3,540.00 accounts for attorney’s fees for a total estimated 11.8 hours at the hourly rate of \$300.00 as follows: 5.3hours to draft the moving papers for a total of \$1,590.00; 2 hours at the same hourly rate for review and prepare for the work for a total of \$600.00; 3 hours to review and prepare for opposition papers; and the work; \$900.00 for a reply brief²²; and 1.5 hours to prepare for the hearing for a total of \$450.00. Here, Plaintiffs did not file an opposition brief to any of the motions to compel, thus the requested three hours to review and prepare opposition papers and a reply brief is inapplicable. (*Id.*).

Plaintiffs oppose imposition of sanction asserting that it has not misused the discovery process. (Joint Statement, at p. 9). Plaintiffs deny failing or refusing to respond to discovery, disobeying court orders to provide discovery, or violating statutory meet-and-confer requirements. (*Id.*). Plaintiffs also emphasize that it did not oppose Defendants’ motions to compel and thus claim there is no basis for monetary sanctions. (*Id.*). Plaintiff points to the ongoing efforts to comply with discovery. (*Id.*).

²⁰ On page 7 of the Joint Statement, the requested amount for plaintiff’s Branch, Rubin, Fanous and Singh is listed as “2,2850,” which appears to be a typo based on the Declaration of Bodzin that accompanies the motion the amount sought is “\$2,850.”

²¹Plaintiffs did not file an opposition brief to any of the motions to compel, thus the requested three hours to review and prepare opposition papers and a reply brief is inapplicable.

²² Plaintiffs did not file an opposition brief to any of the motions to compel, thus the requested three hours to review and prepare opposition papers and a reply brief is inapplicable.

Here, based on the failure to produce RPD No. 2-31 and the unopposed motion to compel, the Court will GRANT sanctions. However, based on the straightforward nature of the identical requests for RPD, Set One for Plaintiff Rabindra Singh and Anthony Colucci the court will award a total of 5 hours total (2.5 hours per case) for preparing and filing the motion and appearing for the hearing at the requested rate of \$300.00 per hour. Even if the motion was unopposed, Rule of Court, rule 3.13148(a) allow for sanctions one the motion is filed. The motions to compel pertaining to the five plaintiffs were filed over one year ago and discovery still has not bee produced.

V. CONCLUSION

Based on the foregoing, the motion to compel responses to SPROG and FROG for Anthony Colucci (Line #3) and Rabindra Singh (Line #4) is DENIED deemed MOOT based on Plaintiffs lodging verified responses on February 3, 2026 showing substantial compliance prior to the hearing.

The motion to compel and RPD Nos. 2-31, Set One for Anthony Colucci (Line #3) and Rabindra Singh (Line #4) is GRANTED. Plaintiffs are to provide verified code-compliant responses within fifteen (15) days of the Order. The motions for sanctions is GRANTED in part and DENIED in part. The total requested amount is DENIED.

Plaintiff is ordered to make payment of \$750 in Line #3 and \$750 in Line #4 for Defendant's counsel within fifteen (15) days of the Order.

Moving party to prepare the Order.

Calendar Lines # 5 - 6

Case Name Niraj Gandhi et al vs Matthew Ginsberg et al

Case No. 24CV455059

Motion to Intervene and Expunge Lis Pendens (Line #5) and

Motion for Protective Order and Request for Sanctions (Line #6)

Non-party Rancho Higuera LLC ("Rancho") filed the motions to intervene (line #5) and motion for protective order and request for sanctions (line #6).

MOTION TO INTERVENE (LINE #5)

I. BACKGROUND

On August 6, 2025, non-party Rancho Higuera LLC ("Rancho") filed a motion to intervene and expunge lis pendens under Code of Civil Procedure 405.30.

No opposition papers were filed. Opposition papers were due on May 8, 2026 per Code of Civil Procedure section 1005(b). A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On May 14, 2026, non-party Rancho Higuera LLC filed a notice of non-opposition to its motion to intervene and filed a proposed Answer.

The Court has carefully reviewed the moving papers: non-party Rancho's notice of motion, memorandum of points and authorities, Declaration of Richard B. Jacobs and attached Exhibit 1-7 and proof of service (totaling 83 pages); and the pleadings. The motion was accompanied by a proof of service indicating overnight delivery and electronic service on August 6, 2025.